

SecureOps Command — Master Subscription Agreement

Provider: SOBBU LLC ("SOBBU", "Provider", "we", "us") **Customer:** [CUSTOMER LEGAL NAME]
("Customer", "you") **Effective Date:** [EFFECTIVE DATE]

IMPORTANT — NOT LEGAL ADVICE. This document is a template prepared to reflect how the SecureOps Command platform operates. It is **not** legal advice and is **not** a substitute for review by a licensed attorney in your jurisdiction. Bracketed [ALL - CAPS] fields must be completed, and the whole agreement should be reviewed by counsel before it is signed or relied upon. SOBBU LLC's state of formation, principal address, insurance, pricing, and governing-law choices must be confirmed by you.

1. Definitions

- **"Platform" / "SecureOps Command"** — the security-operations software-as-a-service owned, developed, and operated by SOBBU, comprising the hosted backend/API, the web admin portal, the public website, and the shared mobile applications (iOS/Android), together with related documentation and updates.
- **"Customer Deployment"** — the dedicated instance provisioned for Customer (its own backend, database, admin/web surface, and branding), reachable through Customer's assigned organization code and/or domain.
- **"Authorized Users"** — individuals Customer permits to access the Platform, including Customer's administrators, dispatchers, site managers, and security officers (whether employees or 1099 contractors of Customer).
- **"Customer Data"** — all data Customer or its Authorized Users submit to or generate in the Platform, including personnel/HR records, payroll and banking details, incident reports, schedules, time entries, chat messages, and location data.
- **"Order Form"** — an ordering document (Exhibit A) referencing this Agreement that sets out the subscribed tier, fees, term, and any deployment specifics.
- **"Sub-processor"** — a third party engaged by SOBBU to process Customer Data in the course of providing the Platform (see Exhibit B).

2. The Service and License Grant

2.1 Grant. Subject to this Agreement and payment of fees, SOBBU grants Customer a non-exclusive, non-transferable, non-sublicensable right during the Term to access and use the Platform and the Customer Deployment for Customer's internal security-operations business.

2.2 Shared mobile application. Customer acknowledges that one shared mobile application build serves all SOBBU customers and routes each device to the correct backend by organization code. Customer receives a tenant within that shared build, not a separate app-store listing, unless separately agreed in an Order Form.

2.3 Provisioning. SOBBU will provision the Customer Deployment, register Customer's organization code in the directory, and enable Customer to configure its own branding (name, colors, logo) and feature flags.

Customer is responsible for the accuracy of its branding and configuration.

2.4 Updates. SOBBU may update, improve, or modify the Platform. SOBBU will use reasonable efforts to avoid materially degrading core functionality during the Term.

3. Customer Responsibilities

3.1 Authorized Users and credentials. Customer is responsible for all activity under its accounts, for provisioning and de-provisioning Authorized Users, and for keeping credentials confidential. Customer will ensure Authorized Users comply with the User Agreement (Terms of Service / EULA).

3.2 Employment and operations. SOBBU provides software only. Customer is solely responsible for its own employment, contractor, licensing, scheduling, wage-and-hour, tax (including 1099 reporting), insurance, and security-services obligations to its personnel and its clients. SOBBU is not Customer's employer, payroll agent, or co-employer, and does not direct security operations.

3.3 Lawful use and accuracy. Customer is responsible for the legality, accuracy, and quality of Customer Data and for obtaining all consents and notices required to collect and process its personnel's and clients' information through the Platform (including consent to GPS location capture while clocked in, push notifications, and any SMS).

3.4 Customer's own end-user disclosures. Where Customer presents its own branded privacy policy and terms to its Authorized Users, Customer is responsible for the accuracy and legal sufficiency of those disclosures.

4. Acceptable Use

Customer will not, and will not permit any Authorized User or third party to:

- access or use the Platform outside the rights granted, or beyond a user's assigned role;
- resell, sublicense, or provide the Platform to third parties except Customer's own Authorized Users and the limited operational data shared with Customer's own clients;
- reverse engineer, decompile, or attempt to derive source code, except as permitted by law;
- probe, scan, scrape, or attempt to defeat security or access controls, or access another tenant's data;
- upload unlawful, infringing, harassing, or malicious content, or use the Platform to violate any law (including TCPA, wage-and-hour, or data-protection laws); or
- misuse safety features (e.g., the emergency button) or falsify clock-in/out, incident, or payroll records.

5. Customer Data; Ownership

5.1 Ownership. As between the parties, Customer owns all Customer Data. Customer grants SOBBU a worldwide, non-exclusive license to host, copy, transmit, process, and display Customer Data solely to provide, secure, and support the Platform and as otherwise permitted in this Agreement.

5.2 Aggregated/anonymized data. SOBBU may generate and use aggregated, de-identified statistics that do not identify Customer, any individual, or Customer's clients, to operate and improve the Platform.

5.3 Export and deletion. During the Term, Customer may export its data through available Platform features. On termination, see Section 10.4.

6. Data Protection and Security

6.1 Roles. For personal data processed through the Platform, Customer is the controller (or equivalent) and SOBBU is the processor acting on Customer's documented instructions (this Agreement and the Order Form being such instructions). The data-processing terms in Exhibit B apply.

6.2 Security measures. SOBBU will maintain commercially reasonable administrative, technical, and organizational safeguards designed to protect Customer Data, including encryption in transit (TLS), password hashing, role-based access control, signed URLs for private files, tenant isolation, and audit logging of sensitive administrative actions.

6.3 Sub-processors. Customer authorizes SOBBU to engage the Sub-processors listed in Exhibit B (e.g., cloud hosting, object storage, email delivery, push-notification gateway, and, where enabled, SMS and payment processors). SOBBU remains responsible for its Sub-processors' performance of the obligations in this Section.

6.4 Incident notification. SOBBU will notify Customer without undue delay after becoming aware of a confirmed breach of security leading to the unlawful destruction, loss, alteration, or unauthorized disclosure of Customer Data, and will provide information reasonably available to assist Customer's own breach-response obligations.

6.5 Customer-side security. Customer is responsible for security within its control, including device security, account/credential hygiene, role assignments, and offboarding.

7. Fees and Payment

7.1 Fees. Customer will pay the fees in the applicable Order Form (Exhibit A). Unless stated otherwise, fees are quoted in U.S. dollars and are due net [PAYMENT TERM, e.g., 30] days from the invoice date.

7.2 Taxes. Fees are exclusive of taxes; Customer is responsible for applicable sales, use, and similar taxes, excluding taxes on SOBBU's net income.

7.3 Late payment. Overdue amounts may accrue interest at the lesser of [LATE-FEE RATE, e.g., 1.5%] per month or the maximum permitted by law. SOBBU may suspend the Platform for non-payment after [NOTICE PERIOD, e.g., 10] days' written notice of a past-due balance.

8. Term and Termination

8.1 Term. This Agreement begins on the Effective Date and continues for the initial term stated in the Order Form, then renews for successive periods of equal length unless either party gives written notice of non-renewal at least [RENEWAL NOTICE, e.g., 30] days before the end of the then-current term.

8.2 Termination for cause. Either party may terminate for the other's material breach not cured within [CURE PERIOD, e.g., 30] days after written notice (or immediately for a breach of Sections 4, 5, 6, or 11 that is not curable).

8.3 Suspension. SOBBU may suspend access where necessary to prevent harm to the Platform, other customers, or third parties, or as required by law, and will restore access promptly once the cause is resolved.

8.4 Effect of termination. On termination or expiration, Customer's right to access the Platform ends. SOBBU will make Customer Data available for export for [EXPORT WINDOW, e.g., 30] days, after which SOBBU may delete Customer Data in the ordinary course, except for data SOBBU must retain to comply with law. Customer remains responsible for retaining records it is legally required to keep (e.g., payroll, tax, incident logs).

8.5 Survival. Sections 5, 7 (for accrued amounts), 9, 11, 12, 13, 14, 15, and 16 survive termination.

9. Confidentiality

Each party may receive the other's non-public information ("Confidential Information"). The receiving party will use it only to perform under this Agreement, protect it with at least reasonable care, and not disclose it except to personnel and advisors with a need to know who are bound by similar obligations. This does not apply to information that is public through no fault of the receiver, independently developed, or rightfully received from a third party. A party may disclose Confidential Information if legally compelled, with reasonable prior notice where lawful.

10. Intellectual Property

10.1 SOBBU IP. SOBBU and its licensors own all right, title, and interest in the Platform, including all software, designs, documentation, and improvements. No rights are granted except as expressly stated.

10.2 Feedback. If Customer provides suggestions or feedback, SOBBU may use it without restriction or obligation.

11. Warranties and Disclaimers

11.1 Mutual. Each party warrants it has the authority to enter into this Agreement.

11.2 Disclaimer. EXCEPT AS EXPRESSLY STATED, THE PLATFORM IS PROVIDED "AS IS" AND "AS AVAILABLE." SOBBU DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. SOBBU DOES NOT WARRANT UNINTERRUPTED OR ERROR-FREE OPERATION, AND THE PLATFORM IS NOT A SUBSTITUTE FOR 911 OR PROFESSIONAL EMERGENCY SERVICES.

12. Indemnification

12.1 By SOBBU. SOBBU will defend Customer against third-party claims alleging the Platform, as provided and used in accordance with this Agreement, infringes that third party's intellectual-property rights, and will pay resulting damages finally awarded or agreed in settlement. SOBBU has no obligation for claims arising from Customer Data, Customer's configuration, or use outside this Agreement.

12.2 By Customer. Customer will defend SOBBU against third-party claims arising from Customer Data, Customer's use of the Platform in violation of this Agreement or law, or Customer's employment, contractor, wage, tax, or security-services obligations, and will pay resulting damages finally awarded or agreed in settlement.

12.3 Procedure. The indemnified party will give prompt notice, reasonable cooperation, and control of the defense to the indemnifying party (no settlement imposing liability on the indemnified party without consent).

13. Limitation of Liability

13.1 Exclusion. TO THE MAXIMUM EXTENT PERMITTED BY LAW, NEITHER PARTY IS LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, REVENUE, OR DATA.

13.2 Cap. EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT WILL NOT EXCEED THE FEES PAID OR PAYABLE BY CUSTOMER TO SOBBU IN THE [12]

MONTHS BEFORE THE EVENT GIVING RISE TO THE CLAIM.

13.3 Exceptions. The caps and exclusions do not apply to Customer's payment obligations, either party's indemnification obligations, or breaches of confidentiality, to the extent prohibited by law.

14. Compliance with Laws

Each party will comply with laws applicable to its performance. Customer is solely responsible for compliance obligations arising from its operation of a security-services business and its handling of personnel and client data, including any sector-specific licensing.

15. General

15.1 Governing law and venue. This Agreement is governed by the laws of the State of [GOVERNING LAW STATE], without regard to conflict-of-laws rules. The parties consent to the exclusive jurisdiction of the state and federal courts located in [VENUE COUNTY/CITY, STATE], except that either party may seek injunctive relief in any court of competent jurisdiction. [OPTIONAL: replace with an arbitration clause if preferred.]

15.2 Independent contractors. The parties are independent contractors; nothing creates a partnership, joint venture, agency, or employment relationship.

15.3 Assignment. Neither party may assign this Agreement without the other's consent, except to a successor in a merger or sale of substantially all assets, on notice.

15.4 Force majeure. Neither party is liable for delay or failure due to causes beyond its reasonable control.

15.5 Notices. Notices must be in writing to the contacts on the Order Form and are effective on receipt; notices to SOBBU: [NOTICE EMAIL] / [SOBBU PRINCIPAL ADDRESS].

15.6 Entire agreement; order of precedence. This Agreement and its Exhibits and Order Forms are the entire agreement and supersede prior understandings. In a conflict, an Order Form controls over the body of this Agreement for the deal-specific terms it addresses.

15.7 Amendments; waiver; severability. Amendments must be in writing and signed. A waiver is effective only if in writing. If any provision is unenforceable, the rest remains in effect.

15.8 No third-party beneficiaries. This Agreement does not create rights for any third party, including Authorized Users or Customer's clients.

Signatures

SOBBU LLC By: _____ Name: _____ Title: _____
Date: _____

[CUSTOMER LEGAL NAME] By: _____ Name: _____ Title: _____
Date: _____

Exhibit A — Order Form (template)

Field	Value
Customer legal name	[CUSTOMER LEGAL NAME]
Organization code	[ORG CODE]
Deployment domain	[CUSTOMER DOMAIN]

Subscription tier / features	[TIER]
Fees	[AMOUNT] per [month/year]
Initial term	[TERM]
Payment terms	Net [N] days
Billing contact	[NAME / EMAIL]

Exhibit B — Data Processing Terms and Sub-processors (summary)

- **Subject matter / duration:** processing of Customer Data to provide the Platform for the Term.
- **Nature and purpose:** hosting, storage, transmission, security, and support of security-operations data.
- **Categories of data subjects:** Customer's administrators, officers/contractors, and limited client-contact data.
- **Categories of personal data:** identity and contact data; employment/HR data (including, as configured, government-ID details, license data, and emergency contacts); payroll and bank-account data; incident content; location data; device and log data.
- **Special handling:** emergency-contact phone numbers are captured for manual/911 use only and are never used as SMS recipients by the Platform.
- **Processor obligations:** process only on documented instructions; ensure personnel confidentiality; implement the security measures in Section 6; assist with data-subject requests and breach notification; delete or return data on termination per Section 8.4; permit reasonable audits subject to confidentiality.
- **Sub-processor categories (current):** cloud application hosting; managed object storage; transactional email delivery; mobile push-notification gateway; (optional, where enabled) SMS provider and payment processor. A current list of named Sub-processors is available from SOBBU on request.

